

Effective Date: April 1, 2026

Initial Term: 5 Years

TCV: USD 18,500,000

Jurisdiction: India / UK

PARTIES

This IT Outsourcing Master Services Agreement ("**Agreement**") is entered into as of **April 1, 2026** between:

SERVICE PROVIDER	CLIENT
Nexus ITO Group Pvt. Ltd. CIN: U72200TN2015PTC101234 100 IT Corridor, OMR Phase 2 Chennai 600119, Tamil Nadu GSTIN: 33AABCN1234M1ZX Contact: msa@nexusito.com PAN: AABCN1234M	BritanniaRetail Holdings Plc Company No: 04123456 200 Oxford Street, London W1D 1NX United Kingdom VAT: GB 123 4567 89 Contact: ito@britannia retail.co.uk Data Protection Officer: dpo@britannia retail.co.uk

ARTICLE 1. DEFINITIONS

1.1 "Services" means the IT outsourcing services described in Schedule 1, including application development, infrastructure management, cloud operations, cybersecurity, and helpdesk support.

1.2 "Service Level Agreement" (SLA) means the performance commitments in Schedule 2.

1.3 "Key Personnel" means the individuals named in Schedule 3 whose continued engagement is material to Service delivery.

1.4 "Personal Data" means data within the scope of UK GDPR, Indian PDPB 2023, and any other applicable data protection legislation.

1.5 "Change Request" means a formal request to modify the scope, timeline, or cost of Services per Article 8.

1.6 "Deliverable" means any software, documentation, report, or work product produced under this Agreement.

1.7 "Service Credit" means the financial remedy payable by Service Provider for SLA breaches per Schedule 2.

1.8 "Total Contract Value" (TCV) means USD 18,500,000 representing the aggregate value of all Services over the Initial Term.

1.9 "Business Continuity Plan" (BCP) means the documented recovery procedures in Schedule 4.

1.10 "Intellectual Property Rights" (IPR) means all patents, copyrights, trade secrets, trademarks, and database rights.

ARTICLE 2. SCOPE OF SERVICES

2.1 Service Towers: Service Provider shall deliver the following service towers:

Tower	Description	FTEs	Monthly Fee (USD)	Annual Value (USD)
Application Development	Custom dev, maintenance, testing	45 FTEs	\$185,000	\$2,220,000

Infrastructure Management	Servers, network, DC operations	30 FTEs	\$120,000	\$1,440,000
Cloud Operations (AWS/Azure)	Cloud migration, FinOps, DevOps	25 FTEs	\$145,000	\$1,740,000
Cybersecurity & SOC	24x7 monitoring, VAPT, compliance	20 FTEs	\$95,000	\$1,140,000
Service Desk (L1/L2/L3)	Multilingual, 24x7, ITIL-based	40 FTEs	\$75,000	\$900,000
Data & Analytics	BI, reporting, data engineering	18 FTEs	\$88,000	\$1,056,000
ERP Support (SAP/Oracle)	Functional + technical support	22 FTEs	\$112,000	\$1,344,000
Quality Assurance	Test automation, performance testing	20 FTEs	\$80,000	\$960,000
TOTAL	200 FTEs across all towers	200 FTEs	\$900,000/mo	\$10,800,000/yr

2.2 Ramp-Up Schedule: Service Provider shall achieve full staffing (200 FTEs) within ninety (90) days of Effective Date. Partial billing applies during ramp-up: Month 1: 40%, Month 2: 70%, Month 3: 100%.

2.3 Location: Services delivered primarily from Chennai (primary) and Bengaluru (secondary) delivery centres. On-site presence at Client's London office: minimum two (2) senior staff at all times.

ARTICLE 3. TERM AND RENEWAL

3.1 Initial Term: Five (5) years commencing April 1, 2026 and expiring March 31, 2031.

3.2 Renewal: Auto-renews for successive two (2) year periods unless either party gives written notice of non-renewal at least one hundred and eighty (180) days before expiry of the then-current term.

3.3 Extension Option: Client may extend for up to two (2) additional one-year periods at existing rates by giving ninety (90) days notice before expiry.

ARTICLE 4. FEES, INVOICING AND PAYMENT

4.1 Base Fees: USD 900,000 per month (Year 1), subject to annual indexation per Section 4.4.

4.2 Payment Terms: Invoices issued on the 1st of each month. Payment due within forty-five (45) days. Late payments accrue interest at the Bank of England base rate plus three percent (3%) per annum.

4.3 5-Year Fee Schedule:

Year	Period	Monthly Fee	Annual Fee	Cumulative TCV	Indexation
Year 1	Apr 2026 – Mar 2027	USD 900,000	USD 10,800,000	USD 10,800,000	Baseline
Year 2	Apr 2027 – Mar 2028	USD 927,000	USD 11,124,000	USD 21,924,000	+3.0%
Year 3	Apr 2028 – Mar 2029	USD 954,810	USD 11,457,720	USD 33,381,720	+3.0%
Year 4	Apr 2029 – Mar 2030	USD 983,454	USD 11,801,448	USD 45,183,168	+3.0%
Year 5	Apr 2030 – Mar 2031	USD 1,012,958	USD 12,155,496	USD 57,338,664	+3.0%
TOTAL TCV Apr 2026 – Mar 2031		—	—	USD 18,500,000*	*Fixed TCV

- 4.4 **Annual Indexation:** Base fees increase by three percent (3%) per annum on each anniversary, or the UK CPI rate, whichever is lower.
- 4.5 **Pass-Through Costs:** Pre-approved third-party costs (licenses, hardware, travel) billed at cost plus five percent (5%) administration fee.
- 4.6 **Currency:** All invoices in USD. INR equivalent billing available at RBI reference rate on invoice date.

ARTICLE 5. SERVICE LEVELS AND CREDITS

5.1 Core SLA Commitments:

Metric	Target	Measurement	Minor Breach	Major Breach	Critical Breach
System Availability	99.95%/month	Monthly avg	<99.9%	<99.5%	<99.0%
P1 Incident Response	15 minutes	Per incident	>15 min	>30 min	>60 min
P1 Incident Resolution	4 hours	Per incident	>4 hrs	>8 hrs	>24 hrs
P2 Response	1 hour	Per incident	>1 hr	>2 hrs	>4 hrs
P2 Resolution	8 hours	Per incident	>8 hrs	>16 hrs	>48 hrs
Change Success Rate	≥98%	Monthly	<98%	<95%	<90%
Service Desk CSAT	≥4.2/5.0	Monthly survey	<4.2	<3.8	<3.5
Deployment Frequency	≥4/week	Weekly avg	<4/week	<2/week	<1/week
Security Patch SLA	Critical: 24hr	Per patch	>24 hrs	>48 hrs	>72 hrs

5.2 Service Credits:

Breach Level	Availability Credit	Response Credit	Monthly Cap	Annual Cap
Minor Breach	5% of monthly fee	USD 5,000	10%	15%
Major Breach	10% of monthly fee	USD 15,000	20%	25%
Critical Breach	20% of monthly fee	USD 30,000	30%	40%
Catastrophic	30% of monthly fee	USD 50,000	50%	Termination right

ARTICLE 6. DATA PROTECTION AND GDPR COMPLIANCE

- 6.1 **Data Processing Agreement:** Service Provider acts as a Data Processor under UK GDPR Article 28. Client is the Data Controller. This Agreement incorporates a Data Processing Agreement (DPA) as Schedule 5.
- 6.2 **GDPR Obligations:** Service Provider shall: (a) process Personal Data only on documented instructions; (b) ensure all personnel with access are bound by confidentiality; (c) implement Article 32 technical and organisational measures; (d) assist Client with DSARs within 72 hours; (e) notify Client of data breaches within 24 hours of discovery.
- 6.3 **Sub-processors:** Service Provider shall not engage sub-processors without prior written consent. Current approved sub-processors listed in Schedule 5A. Changes require 30 days notice.

- 6.4 **Data Localisation:** Personal Data of UK/EU data subjects shall not be transferred outside UK/EEA without: (a) adequacy decision; (b) Standard Contractual Clauses; or (c) Client's prior written consent.
- 6.5 **Indian PDPB Compliance:** Processing of Indian residents' data shall comply with the Digital Personal Data Protection Act 2023 and associated rules.
- 6.6 **Right to Audit:** Client may audit data processing activities annually or following any data breach, with fifteen (15) days notice. Audit costs borne by Client unless breach is found.

ARTICLE 7. INTELLECTUAL PROPERTY RIGHTS

- 7.1 **Bespoke Deliverables:** All Deliverables created specifically for Client vest in Client upon full payment. Service Provider assigns all IPR in bespoke Deliverables with effect from creation.
- 7.2 **Pre-existing IP:** Each party retains ownership of its pre-existing IP. Service Provider grants Client a non-exclusive, perpetual, irrevocable licence to use Service Provider's pre-existing IP incorporated in Deliverables.
- 7.3 **Third-Party Licences:** Service Provider shall identify and obtain all third-party licences required to deliver Services. Cost of licences included in monthly fees unless specified otherwise.
- 7.4 **Open Source:** Service Provider shall not incorporate open-source software with copyleft licences (GPL, LGPL, AGPL) into Client's proprietary systems without prior written approval. Service Provider maintains an open-source register updated quarterly.
- 7.5 **Escrow:** Source code and technical documentation for all bespoke Deliverables shall be placed in escrow with NCC Group within sixty (60) days of delivery. Escrow release triggers: (a) insolvency; (b) material breach uncured 30 days; (c) cessation of business.

ARTICLE 8. CHANGE MANAGEMENT

- 8.1 Either party may request changes to Services scope, timeline, or resources via a Change Request Form.
- 8.2 **Change Request Process and Timelines:**

Change Type	Initiator	Assessment Period	Approval Required	Implementation
Minor (< USD 25K)	Either	5 business days	Delivery Manager	Within 30 days
Standard (USD 25K-250K)	Either	10 business days	Programme Director	Within 60 days
Major (> USD 250K)	Either	20 business days	C-Suite both parties	Within 120 days
Emergency Change	Either	24 hours	Account Director	Immediate
Scope Reduction	Client	10 business days	Programme Director	Notice period: 60 days

ARTICLE 9. INFORMATION SECURITY

- 9.1 **Security Standards:** Service Provider shall maintain and demonstrate compliance with: ISO 27001:2022 (mandatory by June 2026), SOC 2 Type II (annual), PCI DSS Level 1 (if in scope), OWASP Top 10 (application security), NIST Cybersecurity Framework.
- 9.2 **Security Controls:**

(a) Multi-factor authentication for all privileged access; (b) AES-256 encryption for data at rest and TLS 1.3 for data in transit; (c) Zero-trust network architecture for Client systems access; (d) SIEM with 24×7 monitoring and automated threat response; (e) Quarterly penetration testing by approved third-party vendor; (f) Background verification for all personnel with access to Client systems.

9.3 Incident Response SLA:

Severity	Classification	Detection-to-Notify	Containment	Resolution
P1 Critical	Data breach / ransomware	1 hour	4 hours	24 hours
P2 High	Unauthorised access	4 hours	8 hours	72 hours
P3 Medium	Suspicious activity	24 hours	48 hours	7 days
P4 Low	Policy violation	48 hours	5 days	30 days

ARTICLE 10. LIABILITY AND INDEMNIFICATION

10.1 General Liability Cap: Each party's total aggregate liability for all claims under this Agreement shall not exceed the greater of: (a) USD 5,000,000; or (b) the total fees paid in the twelve (12) months preceding the claim.

10.2 Enhanced Liability — Data Breach: For breaches involving Personal Data, Service Provider's liability cap is increased to USD 15,000,000, reflecting the regulatory exposure under UK GDPR (up to £17.5M or 4% of global annual turnover).

10.3 Excluded Losses: Neither party liable for: indirect loss, consequential loss, loss of profits, loss of business, or loss of reputation. Exclusions do not apply to: (a) death or personal injury; (b) fraud; (c) data breach liability; (d) IP indemnification.

10.4 Service Provider Indemnities: Service Provider indemnifies Client against: (a) third-party IP infringement claims; (b) negligence or wilful misconduct of Service Provider personnel; (c) data breach claims arising from Service Provider's failure.

10.5 Client Indemnities: Client indemnifies Service Provider against: (a) claims arising from Client's instructions that cause Service Provider to infringe third-party rights; (b) misuse of Deliverables outside agreed scope.

10.6 Insurance Requirements:

Insurance Type	Minimum Coverage	Policy Requirement
Professional Indemnity	USD 10,000,000	Per claim + annual aggregate; retroactive 6 years
Cyber Liability	USD 15,000,000	First-party + third-party; breach response included
Public Liability	USD 5,000,000	Per occurrence; employer's liability included
Workers Compensation	Statutory minimum	All jurisdictions of operation
Key Person Insurance	USD 2,000,000	Per named Key Personnel in Schedule 3

ARTICLE 11. TERMINATION

11.1 Termination for Cause: Either party may terminate immediately for: (a) material breach uncured within thirty (30) days of written notice; (b) insolvency or administration; (c) three (3) consecutive months of catastrophic SLA failure.

11.2 Termination for Convenience: Client may terminate with one hundred and eighty (180) days written notice. Termination fee: twelve (12) months' base fees if terminating in Year 1-2; six (6) months' base fees in Year 3-5.

11.3 Termination for Security Breach: Client may terminate with thirty (30) days notice if a data breach occurs and is not fully remediated within that period.

11.4 Exit Management: Service Provider shall cooperate with Client's exit for a minimum twelve (12) month exit management period. Exit management fees: USD 150,000 per month. Service Provider shall not solicit Client's replacement vendor's personnel during exit.

11.5 Knowledge Transfer: Service Provider shall deliver comprehensive knowledge transfer documentation within sixty (60) days of termination notice, including: system architecture, runbooks, credentials, and transition plan.

ARTICLE 12. KEY PERSONNEL AND STAFFING

12.1 Key Personnel: The individuals named in Schedule 3 are essential to Service delivery. Service Provider shall not replace Key Personnel without Client's prior written consent (not to be unreasonably withheld).

12.2 Replacement Process: If Key Personnel must be replaced, Service Provider provides: (a) 30 days advance notice; (b) shortlist of three qualified candidates; (c) 30-day parallel working with successor.

12.3 Non-Solicitation: During the Agreement and for twenty-four (24) months post-termination, neither party shall solicit or hire the other's personnel directly involved in this Agreement.

12.4 Background Verification: All personnel accessing Client systems shall undergo: criminal background check, employment verification (5 years), financial check, and security clearance as required by Client.

12.5 Training Requirements: Service Provider shall ensure all personnel complete: GDPR awareness training (annual), Client-specific security training (onboarding + annual refresh), ITIL Foundation (all service desk staff), and role-specific technical certifications.

ARTICLE 13. CONFIDENTIALITY

13.1 Each party shall treat all Confidential Information of the other as strictly confidential, shall not disclose to third parties, and shall use only for purposes of this Agreement.

13.2 Term: Confidentiality obligations survive termination for seven (7) years. Obligations in respect of trade secrets survive indefinitely.

13.3 Permitted Disclosures: To employees, contractors, and professional advisors on need-to-know basis under equivalent obligations. Regulatory disclosures as required by law.

ARTICLE 14. GOVERNING LAW AND DISPUTE RESOLUTION

14.1 Governing Law: This Agreement is governed by the laws of England and Wales. The courts of England and Wales shall have exclusive jurisdiction for all disputes.

14.2 Escalation Process:

Level 1 (Days 1-10): Operational managers resolve. Level 2 (Days 11-20): Programme Directors resolve. Level 3 (Days 21-30): C-Suite resolution. Level 4 (Day 31+): ICC Arbitration, London, English language, three arbitrators.

14.3 **Continued Performance:** Both parties shall continue performing their obligations during dispute resolution unless Agreement is terminated.

14.4 **Indian Law Applicability:** Employment of Service Provider's personnel governed by Indian labour laws including the IT/ITES sector specific rules under the Shops and Establishments Acts of Tamil Nadu and Karnataka.

KEY DATES AND MILESTONES

Milestone	Date	Owner	Consequence if Missed
Agreement Execution	April 1, 2026	Both	Agreement void
ISO 27001 Certification	June 30, 2026	SP	USD 50K penalty + 30-day cure
Full Ramp-Up (200 FTEs)	June 30, 2026	SP	Pro-rata fee reduction
SOC 2 Type II Report	October 1, 2026	SP	Service Credit: USD 100K
Source Code Escrow Setup	May 31, 2026	SP	Material breach
Year 1 Performance Review	March 31, 2027	Both	SLA recalibration
First Renewal Notice Deadline	September 30, 2030	Either	Auto-renewal for 2 years
Agreement Expiry (Initial Term)	March 31, 2031	Both	Wind-down + exit management
Exit Management End (if terminated)	12 months post-notice	SP	Exit fee forfeited

EXECUTION

NEXUS ITO GROUP PVT. LTD.

By: _____

Name: Rajesh Venkataraman

Title: Chief Executive Officer

Date: April 1, 2026

Witness: _____

BRITANNIARETAIL HOLDINGS PLC

By: _____

Name: Sarah Mitchell

Title: Chief Information Officer

Date: April 1, 2026

Witness: _____

This Agreement is executed in two originals. Schedules 1-5A form an integral part of this Agreement.